STANDARD OPERATING PROCEDURE			I-3210
	SARPY COUNTY SHERIFF'S OFFICE PAPILLION * NEBRASKA **GREG LONDON** **SHERIFF**	DATE ISSUED **04/15/24**	DATE REVISED	DATE REVIEWED 02/02/25
		APPROVED: *GREG LONDON*		
CHAPTER TITLE CRIMINAL INVESTIGATIONS	RESOURCES NRS 29-812 THROUGH 29-821			
SUBJECT SEARCH WARRANTS FOR NON-STRUCTURES	CROSS REFERENCE A-7100 EVIDENCE AND PROPERTY			

I. Purpose:

The purpose of this policy is to establish guidelines for the proper writing and execution of search warrants for non-structures. Non-structures include vehicles, DUI blood draws, digital evidence (e.g., evidence from social media platforms like Snapchat and Facebook), and any other entities that are not classified as a house, business, or other dwelling.

II. Policy:

Generally, the obtaining, serving, and returning of search warrants for non-structures may be coordinated by the Investigations Division. Search warrants of non-structures do not need to be approved by the ADC, however, must be reviewed and approved by a Supervisor or Commander. Search warrants shall be obtained, served, and returned in accordance with Nebraska State Statutes.

III. Procedure:

A. Obtaining a Search Warrant: Any deputy may request a search warrant, but he or she must have permission from his or her supervisor.

1. If the search warrant is being drafted by a Deputy outside the Investigations Division, he/she may solicit the assistance of the On-Call Investigator.

2. The deputy shall complete an Affidavit for Search Warrant containing the following:

a) The person(s) and non-structure to be searched.

(1) Non-structures to be searched shall be identified as specifically as possible, based upon serial numbers, VIN numbers, usernames, etc. If a serial number or specific identifier is not known, a detailed description of the location is required.

(2) The affidavit must specify what is to be searched, or the area to be searched. The probable cause must relate to the items to be searched.

(3) A vehicle to be searched shall be identified by listing the VIN, license number, and vehicle description, or any combination thereof. The location of the vehicle should be included.

b) The property to be searched for and seized.

(1) Accurate and full descriptions of the property should be included.

(2) Serial numbers, brand names, and model numbers should be used when possible.

c) The probable cause for the search including what type of crime has been (or is about to be) committed or is occurring and how the deputy has determined the items to be seized are at the location to be searched.

d) The identity of victims, witnesses, or citizens whose information was used to create probable cause (Unless the source is a confidential informant).

e) A description of how the informant or the deputy came to know the location of the items to be seized and how current the knowledge is.

f) Description of the informant's reliability (if an informant is used), including:

(1) The informant's reputation.
(2) Whether or not the informant may have a vendetta against anyone involved in the situation.
(3) The informant's criminal history (This information is provided for the signing judge, but does not need to be included in the affidavit).
(4) Whether or not the informant is being compensated in any way for the information (This information is provided for the

signing judge, but does not need to be included in the affidavit).

(5) Explanation of how and to what extent information from informants has been verified.

g) Explanation of any urgency in searching the location.

h) Reason(s) for serving the warrant at night or entering without knocking (see section B below).

3. The deputy shall complete a Search Warrant form. This form shall include the description of the location(s) to be searched and the description of the items to be searched for and seized. This information should be substantially the same or identical as the information provided in the affidavit.

4. The deputy shall provide the completed Affidavit for Search Warrant and the Search Warrant form to his or her supervisor for review.

5. After approval, the deputy completing the Affidavit and Search Warrant shall coordinate the review of the search warrant by a judge. If the judge is satisfied probable cause exists, he or she will sign the Affidavits and Search Warrants.

a) During normal business hours, the deputy shall email the Sarpy County Bailiffs (bailiff@sarpy.gov) with his or her request to have a judge review the search warrant. The bailiff will notify the deputy what judge will review the search warrant. The deputy shall then directly email that judge his or her notarized affidavit and unsigned search warrant; each document shall be a separate attachment in the same email. After the judge signs the search warrant, the documents will be emailed back to the deputy.

b) The Deputy will ensure only the search warrant pages get delivered to, or left at the location to be searched. Do not provide the affidavit to the location to be searched.

c) Between the hours of 1630 and 0800, weekend, holidays, or any other day Sarpy County Court is not in session, the on-call judge shall handle the search warrant. Prior to contacting the on-call judge, deputies should attempt contact with the on-call county attorney (CA) to review the request. If no contact is made with the on-call CA, the deputy may contact the appropriate on-call judge. If the on-call judge does not answer, a voicemail shall be left identifying the deputy, reason for the call, and a return phone number. Allow fifteen (15) minutes for the on-call judge to return the

call. If after fifteen (15) minutes no return call occurs, the deputy may attempt contact with any other Sarpy County Judge.

d) A signed copy of the Affidavit for Search Warrant and Search Warrant shall be provided to the Clerk of County Court as soon as possible after the Judge signs the search warrant. If the Judge signs the search warrant after hours, the deputy shall be responsible for ensuring a copy of the affidavit and search warrant is received by the Clerk. Forwarding the signed copies through email to the Clerk is allowed if the deputy can show it was received by the Clerk of County Court.

B. Search Warrant Service:

1. Search warrants must be served and returned to the Judge within ten (10) days of issuance.

2. Search warrants being served via electronic means will follow the requirements of the entity being served (Snapchat, Meta, etc.).

a) The website Search.org can aid in locating those proper procedures and law enforcement portals.

C. Warrant Return: Warrants must be returned within ten (10) days of issuance.

1. A Search Warrant form (signed by the Judge) with a completed Return and Inventory portion shall be returned to the Clerk of County Court.

2. The deputy returning the Search Warrant form shall obtain a photocopy of the returned form with the official date and time stamp showing the return. This copy shall be included with the deputy's report.